

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,	)	Case No. 2:25-cv-00405-RMG-MGB
	)	
Plaintiff,	)	
	)	
v.	)	
	)	REPORT AND RECOMMENDATION
CURTISS WRIGHT ELECTRO	)	
MECHANICAL CORP. d/b/a Curtiss-	)	
Wright Steam and Air Solutions,	)	
STEPHANIE LANIER, and SHANE	)	
SABLOTSKY,	)	
	)	
Defendants.	)	
	)	

ⁱⁱ Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*. This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. This case is now before the Court upon Defendants' Motion for Sanctions (Dkt. No. 292). For the reasons set forth below, the undersigned finds that Defendants' Motion for Sanctions (Dkt. No. 292) should be **GRANTED** and **RECOMMENDS** that Plaintiff's case be **DISMISSED IN FULL**.

FACTUAL SUMMARY

According to the Fourth Amended Complaint, Plaintiff alleges that she is an African American female residing in South Carolina. (Dkt. No. 79 at ¶¶ 30–31.) In April 2022, Defendant Curtiss Wright Electro Mechanical Corp., doing business as Curtiss-Wright Steam and Air Solutions (hereinafter "Curtiss-Wright"), hired Plaintiff as an NDT technician. (*Id.* at ¶ 32.)

Plaintiff was considered a good employee until she first complained about differential treatment. (*Id.* at ¶ 33.)

¶ In November 2022, Plaintiff filed a complaint asserting that an Executive Assistant was harassing her. (*Id.* at ¶ 34.) Plaintiff alleges that nothing was done regarding the incident, but her work environment became substantially different. (*Id.* at ¶ 35.)

On May 4, 2023, Plaintiff filed a complaint with the Office of the Naval Inspector General. (*Id.* at ¶ 36.) The Hotline and Investigations Division informed Plaintiff that if she wanted to pursue her claims, she would need to provide specific details and complete the Navy Hotline Complaint Form. (*Id.*)

On May 19, 2023, Plaintiff was conducting a Magnetic Particle Test on large diaphragms (a turbine component) with Joseph Couillard. (*Id.* at ¶ 37.) In the middle of the test, Brian Fogarty¹ arrived and began to scream at Plaintiff and “violently point his finger” at her. (*Id.*) Fogarty continued to yell and scream at Plaintiff for several minutes, and Plaintiff backed away from Fogarty, shocked at his behavior. (*Id.*) When Fogarty finished his tirade, Plaintiff informed him that she would tell Joe Cabaup, NDT Level III Manager, about the incident. (*Id.*) Fogarty stated, “Good,” and stomped out. (*Id.*) Plaintiff reported Fogarty’s behavior to management and Human Resources, but nothing was done to Fogarty. (*Id.* at ¶ 38.)

Plaintiff filed a charge of discrimination with the Equal Employment Opportunity Commission (“EEOC”) on May 31, 2023, alleging workplace harassment, sex discrimination, and race discrimination based on the May 19, 2023 incident with Fogarty. (*Id.* at ¶ 39.) Plaintiff alleges

¹ The Fourth Amended Complaint references “Brian Fogarty.” (Dkt. No. 79.) However, subsequent filings indicate that the proper spelling of this name is “Brian Fogarty.” (*See, e.g.*, Dkt. No. 242.) For purposes of clarity, the undersigned has used the proper spelling of Mr. Fogarty’s name throughout this Report and Recommendation.

that the EEOC issued the right to sue regarding this charge on June 5, 2023, but she did not file a cause of action with the Court for fear of retaliation. (*Id.* at ¶ 40.)

On June 20, 2023, Plaintiff sent a letter to the CEO of Curtiss-Wright, Lynn M. Bamford, regarding the treatment of African-American women at the Summerville facility. (*Id.* at ¶ 41.) Plaintiff contacted CEO Bamford again on June 28, 2023, specifically stating that Plaintiff was being subjected to wage discrimination, discrimination based on sex, favoritism, ageism, bullying, harassment, and a hostile work environment. (*Id.* at ¶ 42.) Plaintiff stated that there was a culture of abusive and aggressive behaviors towards women that was not being addressed and that violated Curtiss-Wright's own policies. (*Id.*) Plaintiff informed CEO Bamford that incidents involving bullying, harassment, hostile work environment, and discrimination had been reported to Defendant Stephanie Lanier ("Defendant Lanier") in Human Resources, but there had been no investigation, determination, or resolution. (*Id.*)

On July 12, 2023, Plaintiff reported to Defendant Lanier in Human Resources that Patrick Ingram was not fulfilling his duties as one of the NDT Techs, including failing to perform his daily inspections. (*Id.* at ¶ 43.) Plaintiff complained of "blatant and continuous favoritism" shown to Ingram since July 2022. (*Id.*) On July 14, 2023, Defendant Lanier falsified a disciplinary action report by stating that she had given it to Plaintiff. (*Id.* at ¶ 44.)

On July 20, 2023, Defendant Lanier informed Plaintiff that Fogarty was giving Plaintiff feedback, not bullying her. (*Id.* at ¶ 45.) On July 25, 2023, Plaintiff was required to attend a meeting with Defendant Lanier, Mary Workoff, and Antonio Coleman regarding bullying, discrimination, and favoritism. (*Id.* at ¶ 46.) Workoff and Lanier informed Plaintiff that the bullying incident with Fogarty had been handled, though it may not have been what Plaintiff wanted. Plaintiff asked how many chances a person had to bully someone, and Lanier responded, "It depends." (*Id.*)

On July 27, 2023, Plaintiff emailed Coleman and Defendant Lanier, outlining examples of what Plaintiff believed to be favoritism and discrimination based on race. (*Id.* at ¶ 47.) She also complained that Fogarty's bullying and hostile work environment were not "constructive feedback." (*Id.*)

On July 31, 2023, Plaintiff received an email from Vice President/General Counsel/Corporate Secretary Paul Ferdenzi, stating that CEO Bamford had forwarded Plaintiff's complaint to him for handling and that an independent investigation would be performed on her claims. (*Id.* at ¶ 48.) On August 7, 2023, Plaintiff informed Ferdenzi that she had sent the materials to him regarding her complaint a month ago and that she was contacting news outlets. (*Id.* at ¶ 49.) Ferdenzi responded, "Please feel free to do whatever you believe is best for you. If you are telling me these things to influence our investigation, it won't work. We will conduct an independent an[d] objective review of your concerns and then let you know what we determine." (*Id.*)

On August 10, 2023, Plaintiff filed a complaint with the Naval Inspector General (NAVINSGEN). (*Id.* at ¶ 50.) The complaint asserted that Fogarty had violated policies regarding bullying based on sex and that Curtiss-Wright refused to address any of her complaints to managers or Human Resources. (*Id.*) Plaintiff also asserted that Defendant Curtiss-Wright covered up all incidents and complaints. (*Id.*)

On August 26, 2023, Plaintiff filed another complaint with NAVINSGEN. (*Id.* at ¶ 51.) This complaint addressed Fogarty's treatment of women and asserted that Curtiss-Wright's investigation into her complaints had taken over three months and nothing had been done. (*Id.*) She specifically complained as follows: "There is a culture of abusive behavior towards women. There is no one holding perpetrators accountable for their actions even when there are complaints filed. Management is too concerned with protecting their friends and not following laws and their

own code of conduct.” (*Id.*) Plaintiff informed NAVINSGEN that she was being retaliated against, that she had filed complaints with the EEOC, and that the EEOC had informed her that there was not enough evidence to go forward with a charge of discrimination. (*Id.*)

On September 18, 2023, Curtiss-Wright fired Mary Workoff, the plant manager at the Summerville, SC facility. (*Id.* at ¶ 52.) Plaintiff’s timecard was altered for September 26–29, 2023. (*Id.* at ¶ 53.)

On September 26, 2023, Plaintiff filed a formal complaint with Human Resources EthicsPoint for Curtiss-Wright. (*Id.* at ¶ 54.) Plaintiff complained that she was being blocked from printing due to the fact that she was using emails to report Defendant Curtiss-Wright to the Department of the Navy. (*Id.*) Plaintiff complained that Defendant Lanier harassed and bullied Plaintiff, failed to treat Plaintiff with respect, and disciplined Plaintiff in retaliation for Plaintiff’s complaints to the EEOC, the Department of the Navy, and the Inspector General. (*Id.*)

On September 28, 2023, Plaintiff filed another complaint with NAVINSGEN alleging that she was being subjected to retaliation and hostile work environment and that she had been verbally counseled and threatened with termination. (*Id.* at ¶ 55.)

Plaintiff filed a second charge of discrimination with the EEOC on October 5, 2023. (*Id.* at ¶ 56.) This second charge alleged that she was subjected to workplace harassment on May 19, 2023, when Fogarty yelled at her and repeatedly waved his finger in her face after becoming upset at her for not checking the QPC Code. (*Id.*) The second charge further alleged that after Plaintiff filed a complaint of discrimination, she was subjected to retaliation when her printing capabilities were disabled multiple times and when her work hours were adjusted without her knowledge. (*Id.*) Plaintiff alleged discrimination based on sex and race. (*Id.*) The EEOC issued a right to sue regarding Plaintiff’s second charge on October 6, 2023. (*Id.* at ¶ 57.)

On October 16, 2023, Plaintiff learned that her Ethics complaint was determined to be without merit. (*Id.* at ¶ 58.)

On November 7, 2023, Plaintiff filed another complaint with NAVINSGEN and the Department of Labor's Office of Federal Contract Complaint (OFCCP) regarding her work environment and retaliation, specifically stating that her time was being "tampered with"; that Curtiss-Wright was not giving her the practical exam she needed to become certified, which negatively impacted her pay; that male employees were being paid more per hour; and that Curtiss-Wright was failing to convert certain individuals from contract to direct employees. (*Id.* at ¶¶ 59, 67–68.)

On November 14, 2023, Plaintiff received a final written warning. (*Id.* at ¶ 60.) Plaintiff went to HR and accused Defendant Lanier of lying on Plaintiff's disciplinary action. (*Id.*) "In order to not appear threatening, . . . Plaintiff immediately backed away from [Defendant] Lanier's desk and did not make any statements but sat in a chair several feet away from Lanier." (*Id.*) However, Defendant Lanier later lied when she told others that Plaintiff had stood over her and been threatening. (*Id.*) As a result, Plaintiff was suspended for alleged abusive and unprofessional behavior, even though Fogarty had not been suspended for his behavior towards Plaintiff in May. (*Id.*)

On November 15, 2023, a co-worker told Plaintiff that Defendant Shane Sablotsky and others were telling employees that Plaintiff had been suspended because she was combative and threw water on a computer during a meeting. (*Id.* at ¶ 61.)

On November 20, 2023, Defendant Lanier sent Plaintiff an email informing her that if she wanted her personal items from her locker, Defendant Lanier would mail them to her. (*Id.* at ¶ 62.)

On December 1, 2023, Plaintiff left a voicemail for April James in Human Resources, inquiring about the status of her suspension. (*Id.* at ¶ 65.) Plaintiff subsequently received a letter dated November 21, 2023, informing her that she had been terminated effective November 21, 2023. (*Id.* at ¶¶ 63, 66.) Plaintiff was replaced by a Caucasian male. (*Id.* at ¶ 78.)

On December 14, 2023, Plaintiff learned that the complaint she had filed with the OFCCP on November 7, 2023, had been transferred to the EEOC for investigation. (*Id.* at ¶¶ 67–68.) Plaintiff contacted the EEOC in January 2024 to find out the status of this complaint, but she did not receive a response. (*Id.* at ¶¶ 23–24.)

Plaintiff alleges that, in early 2024 and into 2025, Plaintiff experienced repeated cyber-intrusions and physical surveillance as follows:

- Her personal devices displayed unauthorized log-in attempts, corrupted files, and system override messages after she pursued her complaints.
- While on mandatory work travel in Yuma, Arizona in April of 2024, Plaintiff was followed by an unknown woman; later confirmed on hotel surveillance, which Plaintiff reported to hotel management.
- On April 22, 2025, her personal vehicle’s infotainment system played unsolicited audio and broadcast her private calls without consent.

(*Id.* at ¶ 99.) Plaintiff alleges that “Defendants were aware of Plaintiff’s protected disclosures yet took no steps to halt the hacking or surveillance and instead coordinated adverse actions culminating in her termination.”² (*Id.* at ¶ 100.)

On May 2, 2024, Plaintiff filed her third charge of discrimination with the EEOC, alleging retaliation and race and sex discrimination from December 6, 2022, through November 21, 2023. (*Id.* at ¶¶ 25–26.) The EEOC issued its right to sue to Plaintiff on November 19, 2024. (*Id.* at ¶ 28.) Plaintiff filed her initial Complaint in this civil action on December 17, 2024, alleging, *inter*

² Plaintiff appears to believe Defendants are responsible for the hacking and surveillance outlined in her Fourth Amended Complaint.

alia, discrimination, hostile work environment, and retaliation claims under Title VII of the Civil Rights Act of 1964 (“Title VII”), 42 U.S.C. § 1981, and the Age Discrimination in Employment Act (the “ADEA”). (Dkt. No. 1.) The current operative pleading—the Fourth Amended Complaint—raises fourteen causes of action: (1) a claim against all Defendants for race discrimination in violation of Title VII and § 1981; (2) a claim against all Defendants for sex discrimination in violation of Title VII; (3) a claim against all Defendants for age discrimination in violation of the ADEA; (4) a claim against Defendant Curtiss-Wright for hostile work environment in violation of Title VII; (5) a claim against all Defendants for retaliation in violation of Title VII and the ADEA; (6) a claim against Defendants Lanier and Sablostsky (collectively, the “Individual Defendants”) for slander; (7) a claim against the Individual Defendants for tortious interference with a contract; (8) a claim against all Defendants for whistleblower retaliation, in violation of 41 U.S.C. § 4712 and 31 U.S.C. § 3730(h); (9) a claim against Defendant Curtiss-Wright for violation of Title VI, 42 U.S.C. § 2000d; (10) a claim against all Defendants for invasion of privacy; (11) a claim against all Defendants for illegal interception of communications in violation of the Federal Wiretap Act, 18 U.S.C. § 2511; (12) a claim against all Defendants for intentional infliction of emotional distress; (13) a claim against all Defendants for breach of contract;³ and (14) a claim against all Defendants for civil conspiracy. (Dkt. No. 79.)

RELEVANT BACKGROUND

As noted, this case was removed to federal court from the Dorchester County Court of Common Pleas on January 21, 2025. (Dkt. No. 1.) Since that time, Plaintiff has amended her complaint four times and filed a plethora of motions, including more than twenty discovery-related motions. In an effort to resolve the parties’ ongoing discovery issues, the Court entered an Order

³ Plaintiff’s breach of contract claim was dismissed on January 5, 2026. (Dkt. No. 270.)

on December 15, 2025 in which the Court ordered both parties to produce certain discovery materials by January 30, 2026. (Dkt. No. 251.) Relevant to the instant motion, the Court (1) granted Defendants' Motion to Compel as to Plaintiff's employment and financial records and ordered her to supplement her discovery responses as to such; (2) granted Defendants' Motion to Compel as to Plaintiff's social media posts related to this case and ordered her to supplement her discovery responses as to the same; (3) granted Defendants' Motion to Compel with respect to all documents contained in a flash drive Plaintiff submitted to the Court on or about May 13, 2025 and ordered Plaintiff to produce the same; (4) granted Defendants' Motion to Compel with respect to any and all documents she provided to or received from, and all communications she had with, the Office of the Naval Inspector General related to the complaints she filed against Defendant Curtiss-Wright and ordered Plaintiff to produce the same; and (5) granted Defendants' Motion to Compel as to Plaintiff's medical and therapy records, instructing Plaintiff that she could either forego her intentional infliction of emotional distress claim and her claims for emotional damages or produce her medical and therapy records, permitting Defendants an opportunity to conduct full and fair discovery into such claims. (*Id.*) The Court specifically noted that Plaintiff's failure to produce her medical and therapy records would be construed as a waiver of her intentional infliction of emotional distress and emotional damages claims and explicitly warned Plaintiff that she could be subject to sanctions if she failed to comply with the Court's Order. (*Id.* at 15.)

• The Court also specifically noted that no further extensions of the discovery deadline would be granted, and that the discovery deadline had expired except to allow the parties to comply with the orders and instructions set forth in the Court's December 15 Order. (*Id.* at 24.) Accordingly, the Court explained that the parties need not comply with any additional discovery requests served after the date of the Order, as any such requests would be untimely. (*Id.*) What is more, the Court

explicitly stated it would not entertain further discovery motions unless pertinent to the orders and instructions set forth in the December 15 Order. (*Id.*)

Plaintiff then proceeded to file several more discovery-related motions, which the Court denied. (*See, e.g.*, Dkt. Nos. 257, 261, 263, 264, 271, 289.) On January 5, 2026, Plaintiff filed a “Reply, Clarification, and Record Preservation Regarding Order ECF 251.” (Dkt. No. 272.) In this filing, Plaintiff indicated that she wanted to proceed with her intentional infliction of emotional distress and emotional damages claims, and stated she would “provide proportional, narrowly tailored supplementation consistent with Federal Rule of Civil Procedure 26(b)(1).” (*Id.* at 1.) Plaintiff’s filing noted that she “does not consent to unlimited disclosure of medical or psychotherapy records, does not waive applicable privileges, and does not agree to blanket medical or psychotherapy authorizations,” and stated that she had “already served discovery responses asserting proportionality, relevance, privilege, and privacy objections [but would] supplement those responses consistent with ECF 251” (*Id.*) Plaintiff’s filing then reasserted many of the objections the Court overruled in its December 15 Order, stating that she did not seek additional relief from the December 15 Order but instead sought to “clarify compliance.” (*See generally id.*)

On February 13, 2026, Defendants filed the instant Motion for Sanctions (Dkt. No. 292). Plaintiff filed her response on February 18, 2026, (Dkt. No. 294), to which Defendants replied on February 25, 2026. (Dkt. No. 297.) Plaintiff filed a sur-reply on February 27, 2026. (Dkt. No. 299.) As such, the motion before the Court has been fully briefed and is ripe for disposition.

LEGAL STANDARD

Federal district courts are vested with broad discretion in resolving discovery disputes. *Erdmann v. Preferred Research, Inc., of Ga.*, 852 F.2d 788, 792 (4th Cir. 1988). Federal Rule of Civil Procedure 26 governs discovery and provides:

Unless otherwise limited by court order, the scope of discovery is as follows: Parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit. Information within this scope of discovery need not be admissible in evidence to be discoverable.

Fed. R. Civ. P. 26(b)(1).

Additionally, the Court has authority pursuant to Rule 37(b)(2)(A) to sanction a party for failure to comply with a court order regarding discovery:

(A) For Not Obeying a Discovery Order. If a party or a party's officer, director, or managing agent—or a witness designated under Rule 30(b)(6) or 31(a)(4)—fails to obey an order to provide or permit discovery, including an order under Rule 26(f), 35, or 37(a), the court where the action is pending may issue further just orders.

They may include the following:

- (i) directing that the matters embraced in the order or other designated facts be taken as established for purposes of the action, as the prevailing party claims;
- (ii) prohibiting the disobedient party from supporting or opposing designated claims or defenses, or from introducing designated matters in evidence;
- (iii) striking pleadings in whole or in part;
- (iv) staying further proceedings until the order is obeyed;
- (v) dismissing the action or proceeding in whole or in part;
- (vi) rendering a default judgment against the disobedient party; or
- (vii) treating as contempt of court the failure to obey any order except an order to submit to a physical or mental examination.

Fed. R. Civ. P. 37(b)(2)(A).

To aid the Court in determining what sanctions to impose under Rule 37, the United States Court of Appeals for the Fourth Circuit has approved a four-part test. *Anderson v. Foundation for Advancement, Educ. & Emp. of Am. Indians*, 155 F.3d 500, 504 (4th Cir. 1998) (citing *Wilson v. Volkswagen of Am., Inc.*, 561 F.2d 494, 505–06 (4th Cir. 1977)); *Beach Mart, Inc. v. L & L Wings, Inc.*, 784 F. App'x 118, 124 (4th Cir. 2019). Under this test, the Court should consider: “(1) whether the non-complying party acted in bad faith, (2) the amount of prejudice that noncompliance caused the adversary, (3) the need for deterrence of the particular sort of non[]compliance, and (4) whether less drastic sanctions would [be] effective.” *Beach Mart, Inc.*, 784 F. App'x 118 at 124.⁴

DISCUSSION

In their Motion for Sanctions, Defendants request that the Court impose sanctions upon Plaintiff up to and including dismissal of her case, with prejudice. (*See generally* Dkt. No. 292.) Upon careful consideration, the undersigned finds that Defendants' motion should be **GRANTED**, and **RECOMMENDS** that Plaintiff's case be **DISMISSED IN FULL**.

I. Arguments

According to Defendants, Plaintiff continues to withhold “essential information related to her claims,” including, “evidence of Plaintiff's alleged whistleblower reports; administrative complaints; proof of monetary damages; and evidence supporting her assertion that she suffered emotional distress as a result of Defendants' conduct,” despite the Court's clear instructions that all such information must be produced. (Dkt. No. 292 at 2.) In fact, Defendants claim that “[t]he only discovery [they] have received from Plaintiff since the Court's December 15 Order are a

⁴ Although *pro se* litigants are entitled to some deference from courts, *see, e.g., Haines v. Kerner*, 404 U.S. 519 (1972), they are nonetheless subject to the same time requirements and respect for court orders as other litigants. *See Ballard v. Carlson*, 882 F.2d 93, 96 (4th Cir. 1969).

single YouTube video related to her claims, . . . and screenshots of some text messages with Jeff Womack” (*Id.* at 4.)

Defendants contend that they followed up with Plaintiff on January 15 in an attempt to “outlin[e] the specific discovery required under the Court’s December 15 Order . . . quot[ing] the Order directly to make clear to Plaintiff what she was obligated to produce” (*Id.*) Plaintiff did not respond. (*Id.* at 5.) Defendants again followed up with Plaintiff on January 30, after serving Plaintiff with their own responses to the discovery requests authorized by the Court’s December 15 Order. (*Id.*) Plaintiff again did not respond but proceeded to send Defendants “a series of unrelated emails concerning Defendants’ discovery responses.” (*Id.*) As such, Defendants request sanctions.

Defendants first argue that Plaintiff’s willful refusal to comply with her discovery obligations has caused substantial and irreparable prejudice, warranting dismissal of her case. (*Id.*) More specifically, Defendants explain that “[d]espite Defendants’ repeated requests, extensive motions practice, and a direct Court Order, Plaintiff has produced no documents supporting her claims of emotional or financial damages allegedly caused by Defendants,” while Defendants “have been forced to expend significant time, money, and resources in repeated—but unsuccessful—efforts to obtain the most basic of discovery underlying Plaintiff’s claims.” (*Id.*) Defendants contend that lesser sanctions, such as reopening discovery, are not feasible here, where: (1) the Court has already explicitly indicated that the discovery deadline would not be extended, and (2) there is no indication that Plaintiff would even comply under a renewed deadline.⁵ (*Id.*) Rather, Defendants contend that the Court should “dismiss the action in its entirety,

⁵ In fact, Defendants contend that they would suffer further prejudice if the Court were to reopen discovery because “[a]n extension would permit Plaintiff yet another opportunity to manipulate deadlines driving up the cost of litigation that has already been unreasonably protracted.” (Dkt. No. 292 at 12.) Defendants claim that “[g]iven the

rather than permit Plaintiff to continue pursuing claims for which she has provided no factual support and no evidence of damages.” (*Id.* at 17.)

In support of this request, Defendants note that the Court has already ruled upon the relevance of Defendants’ discovery requests related to Plaintiff’s intentional infliction of emotional distress and emotional damages claims, providing Plaintiff with a “clear and unambiguous instruction” to either provide the discovery at issue or waive her claims. (*Id.* at 7.) Defendants further argue that Plaintiff appears to concede that dismissal of an entire civil action is appropriate where a party does not produce relevant discovery in accordance with a Court Order. (*Id.*) Indeed, Defendants note that Plaintiff has filed various discovery motions against them, including a motion filed on December 6, 2025 seeking “terminating sanctions.” (*Id.*, referencing Dkt. No. 235.) In that motion, Plaintiff cited Federal Rule of Civil Procedure 37(b)(2)(A) and noted the Fourth Circuit’s standard considerations for determining appropriate sanctions. (*See generally* Dkt. No. 235.) Plaintiff argued that the Court should impose terminating sanctions on Defendants upon determining that they “acted intentionally to deprive [her] of evidence.”⁶ (*Id.* at 8.) Defendants contend that this demonstrates Plaintiff’s full understanding that her noncompliance with the Court’s discovery orders could result in dismissal. (*Id.* at 10.)

* Defendants also point out that “[w]ith discovery now closed, Defendants have no recourse and have been deprived of the evidence necessary to evaluate whether Plaintiff can establish the prima facie elements of her claims or whether she suffered any cognizable damages.” (*Id.* at 8.) Defendants note that Plaintiff has “wield[ed] her pro se status as both sword and shield throughout this litigation and that “[c]ourts within the Fourth Circuit have dismissed entire pro se

history of this case, another extension would almost certainly generate additional unnecessary and burdensome motion practice,” which “is untenable and should be avoided.” (*Id.*)

⁶ It is worth noting that the Court found no basis upon which to issue terminating sanctions against Defendants and denied Plaintiff’s motion. (Dkt. No. 285.)

actions under similar circumstances,” including in less egregious situations. (*Id.*) According to Defendants, “it would be inequitable to permit Plaintiff to now invoke her pro se status as a basis for leniency or to avoid the consequences of her deliberate, willful misconduct.” (*Id.* at 10.)

Defendants next contend that dismissal of Plaintiff’s claims is an appropriate sanction because Plaintiff acted in bad faith. (*Id.*) Specifically, Defendants assert that Plaintiff’s January 5, 2026 filing made clear that she did not intend to comply with the Court’s December 15 Order—as did her failure to respond to Defendants’ letters—despite the fact that she had no good-faith basis for refusing to provide the discovery ordered by the Court. (*Id.* at 10–11.) Defendants contend that “[g]iven the clarity of the Court’s directive [in its December 15 Order] and the ample time provided, Plaintiff’s continued noncompliance is not justified.” (*Id.* at 11.)

Defendants also proffer that “[t]here is no feasible way for Plaintiff’s causes of action or claims for damages to proceed at this stage.” (*Id.*) By way of example, Defendants explain that “Plaintiff asserts a whistleblower retaliation claim, yet she has produced no evidence—beyond her own self-serving allegations—that she ever filed a whistleblower complaint while employed by Defendant Curtiss Wright.” (*Id.* at 11–12.) Indeed, “Plaintiff refused to produce court-ordered documentation of whistleblower complaints she submitted to government agencies,” and Defendants “cannot determine whether Plaintiff suffered any economic damages that could expose them to liability because Plaintiff refused to produce her financial records or any evidence of income or losses.” (*Id.* at 12.) Defendants explain that “[t]hroughout this litigation, Plaintiff has repeatedly asserted that her damages and Defendants’ liability are substantial, yet she continues to withhold all evidence necessary for Defendants to fully and fairly assert defenses.” (*Id.*) Now that discovery has closed, Defendants have no means of obtaining the information they need from Plaintiff. (*Id.*) Accordingly, Defendants assert that “[a]llowing Plaintiff to proceed under these

circumstances would be fundamentally unfair” because “Defendants cannot develop an informed litigation strategy when Plaintiff refuses to provide even the most basic information supporting her claims or substantiating the alleged value of her case.” (*Id.*) In sum, Defendants argue that “[a]fter more than a year of intensive and costly litigation, Defendants are forced to continue expending resources despite the absence of evidence that Plaintiff suffered damages or any evidence supporting most of her claims—all because Plaintiff has deliberately withheld required discovery.” (*Id.* at 15.)

In the alternative, Defendants contend that “any sanction short of dismissal with prejudice must be severe to ensure that Plaintiff is not permitted to benefit from her willful and strategic attempts “to deprive Defendants of the information necessary to defend against her causes of action and claims for damages.” (*Id.*) Defendants therefore request that the Court, at minimum: (1) dismiss Plaintiff’s claims for intentional infliction of emotional distress and emotional damages, with prejudice; (2) dismiss Plaintiff’s claim for compensatory and economic damages, with prejudice; (3) dismiss Plaintiff’s whistleblower retaliation claim, with prejudice; (4) dismiss Plaintiff’s invasion of privacy and illegal interception of communications claims, with prejudice; (5) bar Plaintiff from using any evidence that she has withheld from Defendants to support her remaining claims;⁷ and (6) award Defendants’ attorneys’ fees⁸ incurred in moving to compel discovery and in preparing the instant motion. (*Id.* at 18–19.)

⁶ As support for these requested sanctions, Defendants begin by noting that the Court has already stated it would dismiss Plaintiff’s claims for intentional infliction of emotional distress and

⁷ Defendants do, however, note that this request invites “further costly and unnecessary motion practice” in light of Plaintiff’s history in this case. (Dkt. No. 292 at 19.) Defendants therefore request that the Court dismiss the affected claims rather than inviting confusion and, inevitably, further litigation of this point. (*Id.*)

⁸ Defendants indicate that defense counsel will submit an Affidavit in Support of Attorneys’ Fees at the Court’s request. (Dkt. No. 292 at 19.)

emotional damages if Plaintiff declined to produce evidence in support of those claims. (*Id.* at 18.) Defendants next explain that “although Defendants sought discovery relevant to [Plaintiff’s compensatory and economic damages, whistleblower retaliation, and invasion of privacy and illegal interception of communications claims], Plaintiff provided no factual basis whatsoever to allow Defendants to evaluate their truth or falsity.” (*Id.*) Defendants contend that these claims should be dismissed because they “would face prejudice by having to engage in additional motion practice” in attempting to elicit discovery responses relevant to such claims. (*Id.*)

⁹ Specific to Plaintiff’s compensatory and economic damages claims, Defendants note that they sought basic information regarding these claims, such as tax returns and records of income, which the Court ordered Plaintiff to produce. (*Id.*) Nonetheless, “Plaintiff refused to provide documentation sufficient for Defendants to assess whether she suffered any economic damages at all.” (*Id.*) As for her whistleblower retaliation claim, Defendants again state that they sought basic information regarding this claim, including “a request that she produce all documents that she provided or received from, and all communication with, the Office of the Naval Inspector General, in relation to any complaint that she filed against Curtiss-Wright.” (*Id.*) Again, the Court ordered Plaintiff produce this information in its December 15 Order. (*See generally* Dkt. No. 251.) However, Plaintiff has refused to produce any such materials, save for a single “online complaint form” presented to a witness at a deposition (over the objection of defense counsel).⁹ (Dkt. No. 292 at 18.) Regarding Plaintiff’s invasion of privacy and illegal interception of communications claims, Defendants contend that Plaintiff refuses to produce all of the evidence she claims to have in support of such claims, including documents included on a flash drive she previously submitted to the Court. (*Id.* at 19.) As with the other discovery materials Plaintiff has refused to produce, the

⁹ Defendants contend this form is “a fillable pdf” and there is “no indication it was ever submitted.” (Dkt. No. 292 at 18.)

Court ordered Plaintiff to independently produce to Defendants copies of the records she submitted to the Court via flash drive in its December 15 Order. (*See generally* Dkt. No. 251.) Additionally, Defendants assert that “Plaintiff has not produced material discovery on the majority of her remaining claims, including her Title VII claim, her 42 U.S.C. § 1981 claim, her ADEA claim, her hostile work environment claim, her retaliation claim, her slander claim, her intentional interference with contractual relations claim, and her civil conspiracy claim.” (Dkt. No. 292 at 19.) Defendants therefore request that the Court, at a minimum, bar Plaintiff from using evidence that she has withheld from Defendants to support any of her remaining claims. (*Id.*)

In response to Defendants’ motion, Plaintiff claims that Defendants have “not shown prejudice, willfulness, or bad faith sufficient to warrant sanctions” and that Defendants are attempting to “weaponize discovery as a litigation tactic to punish Plaintiff for pursuing her claims.” (Dkt. No. 294 at 1.) Plaintiff asserts that Defendants themselves have refused to produce “critical documents central to liability and comparator analysis,” and therefore “cannot credibly seek sanctions against Plaintiff while refusing to comply with [their] own discovery duties and while withholding documents that are central to Plaintiff’s claims.” (*Id.* at 2.) Plaintiff claims that her failure to comply with the Court’s December 15 Order is not “willful defiance,” but rather is “based on the disproportionate scope of Defendant[s’] requests and Defendant[s’] own pattern of refusing to produce Plaintiff’s requested evidence.” (*Id.*) She also claims that Defendants are not prejudiced by her failure to provide information regarding wages and damages because “Defendant[s] [] had full opportunity to depose Plaintiff and inquire into damages.” (*Id.* at 3.)

In their reply, Defendants note that Plaintiff does not dispute that she failed to provide Defendants with the discovery materials she was ordered to produce on December 15. (Dkt. No. 297 at 1–2.) Defendants further note that Plaintiff does not provide any legal justification for this

failure but instead repeats the objections that this Court previously overruled. (*Id.* at 2.) Defendants also argue that Plaintiff's "attempts to deflect are disingenuous," explaining that Plaintiff did not request the materials at issue in her response until January 8, 2026,¹⁰ after the Court had explicitly informed the parties that any additional discovery requests served after the Court's December 15 Order were untimely, and the parties need not comply with them. (*Id.* at 3.)

Defendants next highlight that a Freedom of Information Act ("FOIA") response Plaintiff attempts to use to support the arguments in her response was never previously disclosed to Defendants, even though it was responsive to Defendants' discovery requests. (*Id.* at 4.) Defendants contend this is "emblematic of a wider issue that underlies Defendants' Motion for Sanctions" because Plaintiff, if she is not properly sanctioned, "will continue to spring evidence on Defendants when she thinks that doing so is to her benefit, thwarting the purpose and goals of discovery and significantly prejudicing Defendants." (*Id.*) Defendants further argue that this shows Plaintiff "cannot be trusted to not introduce undisclosed evidence without the dismissal of the claims for which she has withheld evidence." (*Id.* at 4–5.)

II. Analysis

Upon careful review, the undersigned finds Defendants' arguments regarding total dismissal of Plaintiff's claims convincing. The undersigned therefore **RECOMMENDS** that Defendants' Motion for Sanctions (Dkt. No. 292) should be **GRANTED**, and Plaintiff's case should be **DISMISSED IN FULL**.

First, the undersigned finds that Plaintiff has acted in bad faith in failing to comply with the Court's December 15 Order. *Beach Mart, Inc.*, 784 F. App'x 118 at 124 (listing "whether the non-complying party acted in bad faith" as a factor to consider when determining appropriate

¹⁰ The exhibits attached to Plaintiff's response and Defendants' reply confirm the same. (*See generally* Dkt. Nos. 294-2, 297-1, 297-2.)

sanctions). Indeed, Plaintiff has demonstrated a blatant disregard for the Court's December 15 Order, as evidenced by her repeated reassertion of objections that the Court has already addressed and resolved. In fact, Plaintiff explicitly stated in her January 5, 2026 filing that she intended to disregard the Court's December 15 Order and would only follow the Order to the extent she saw fit. (*See generally* Dkt. No. 272.) Nonetheless, Plaintiff has provided no legitimate reason for her failure to comply with the Court's December 15 Order, despite multiple opportunities to do so. (*See, e.g.*, Dkt. Nos. 292-2, 294.) As Defendants correctly note, it appears Plaintiff attempts to use her *pro se* status as both a sword and a shield, filing various motions to compel and motions for sanctions against Defendants while simultaneously refusing to produce materials Defendants need in order to litigate their case. (Dkt. No. 292 at 8; *see also* Dkt. Nos. 177, 210, 235.) Against this background, bad faith could not be more evident. *See, e.g., Benton v. Stanley Black & Decker*, No. 0:24-cv-852-JDA-PJG, 2025 WL 2548723, at *3–4 (D.S.C. June 10, 2025) (finding bad faith and recommending dismissal where *pro se* plaintiff failed to comply with court order requiring him to respond to discovery requests and failed to appear for a properly noticed deposition on two occasions), *adopted sub nom. Benton v. Black*, 2025 WL 2218833 (D.S.C. Aug. 5, 2025).

Second, Defendants are severely prejudiced by Plaintiff's noncompliance. *Beach Mart, Inc.*, 784 F. App'x 118 at 124 (listing "the amount of prejudice that noncompliance caused the adversary" as a factor to consider when determining appropriate sanctions). Of course, Defendants cannot properly defend against Plaintiff's claims when Plaintiff refuses to disclose the materials on which she bases those claims. *See Poston v. Lower Florence Cnty. Hosp. Dist.*, No. 4:17-cv-0018-TER, 2021 WL 2337221, at *3 (D.S.C. June 7, 2021) ("A defendant cannot be expected to defend a case where the person bringing the action refuses to participate in the discovery process."). Further, at this juncture, Defendants have indeed "been forced to expend significant

time, money, and resources in repeated—but unsuccessful—efforts to obtain the most basic of discovery underlying Plaintiff’s claims,” and, as Defendants correctly note, they have no means of obtaining the information they need from Plaintiff now that discovery has closed. (Dkt. No. 292 at 5, 12); *see also Benton v. Stanley Black & Decker*, No. 0:24-cv-852-JDA-PJG, 2025 WL 2548723, at *3–4 (D.S.C. June 10, 2025) (recommending dismissal and noting that defendant was prejudiced in having to file motions to compel and for sanctions and because plaintiff’s failure to respond to discovery hindered defendant’s ability to defend itself against plaintiff’s claims), *adopted sub nom. Benton v. Black*, 2025 WL 2218833 (D.S.C. Aug. 5, 2025).

Third, the Court has a significant interest in deterring the specific sort of noncompliance at issue in this case. *Beach Mart, Inc.*, 784 F. App’x 118 at 124 (listing “the need for deterrence of the particular sort of non[]compliance” as a factor to consider when determining appropriate sanctions). As another Court in this district aptly stated, the need for deterrence where, as here, “Plaintiff has repeatedly failed to comply with orders of this court and has complained that the court’s rulings as applied to her are unfair,” is great. *Rowley v. City of N. Myrtle Beach*, No. 4:06-cv-1873-TLW-TER, 2008 WL 4831422, at *5 (D.S.C. Oct. 31, 2008). Plaintiff’s actions throughout this litigation “demonstrate ‘a pattern of indifference and disrespect to the authority of the court.’” *Id.* (quoting *Mutual Federal Savings & Loan v. Richards & Assocs.*, 872 F.2d 88, 92 (4th Cir. 1989)). “In such cases, not only does the noncomplying party jeopardize [the] adversary’s case by such indifference, but to ignore such bold challenges to the district court’s power would encourage other litigants to flirt with similar misconduct.” *Mutual Federal Savings & Loan*, 872 F.2d at 92; *see also National Hockey League v. Metropolitan Hockey Club*, 427 U.S. 639, 642–43 (1976) (noting that dismissal as a sanction “must be available to the district court in appropriate cases, not merely to penalize those whose conduct may be deemed to warrant such a sanction, but

to deter those who might be tempted to such conduct in the absence of such a deterrent”); *see also Randle v. Historic Columbia Found.*, No. 3:05-cv-2581-CMC-JR, 2007 WL 1423862, at *2–3 (D.S.C. May 10, 2007) (“The need to deter plaintiffs from filing cases and then failing to support their claims in any manner is great.”).

Finally, less drastic sanctions would simply not be effective here. *Beach Mart, Inc.*, 784 F. App’x 118 at 124 (listing “whether less drastic sanctions would [be] effective” as a factor to consider when determining appropriate sanctions). As noted, the Court explicitly warned in its December 15 Order that no further extensions of the discovery deadline would be granted. (Dkt. No. 251 at 24.) The Court also explicitly warned Plaintiff that the Court would construe her failure to provide full and fair discovery regarding her intentional infliction of emotional distress and emotional damages claims as her election to waive those claims, and they would be dismissed. (*Id.* at 15.) The Court further noted that Defendants would be entitled to seek sanctions and further appropriate relief should Plaintiff fail to comply with the Court’s Order. (*Id.*) With these warnings in mind, the Court has little choice but to recommend the drastic sanction of dismissal in this instance, particularly in light of Plaintiff’s clear bad faith in declining to comply with the instructions set forth in the Court’s December 15 Order. *See Ballard v. Carlson*, 882 F.2d 93, 95–96 (4th Cir. 1989) (noting that, where the court had previously warned that claims would be dismissed, “the district court had little alternative to dismissal” because “[a]ny other course would have placed the credibility of the court in doubt and invited abuse”).

Indeed, Plaintiff’s own filings make clear that she knew the consequences of failing to comply with the Court’s Order yet willfully ignored it. (*See* Dkt. Nos. 235, 272.) Further, the record indicates that Plaintiff provided nothing more than a few messages and a single video following the Court’s Order, despite the Court’s clear instructions that she must produce several

categories of responsive materials, and the fact that the Court generously allowed Plaintiff to depose three additional witnesses and ordered Defendants to produce discovery materials that Plaintiff had undoubtedly requested after the expiration of the discovery deadline. (*See generally* Dkt. Nos. 251, 292.) Meanwhile, Defendants fully complied with the Court's instructions but are left without the materials they need to litigate and defend against Plaintiff's claims. *See Poston*, 2021 WL 2337221, at *3 ("A defendant cannot be expected to defend a case where the person bringing the action refuses to participate in the discovery process.").

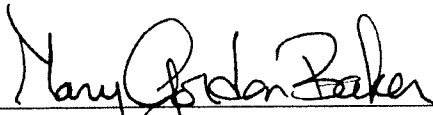
As Defendants correctly note, Plaintiff's pattern of conduct in this case makes lesser sanctions such as partial dismissal and/or prohibiting Plaintiff from using materials withheld from Defendants unfeasible, as Plaintiff's blatant defiance of this Court's Order indicates that she would not comply with further instructions from the Court. *See, e.g., Rowley*, 2008 WL 4831422, at *5 ("[C]onsidering Plaintiff's conduct through the entire course of this litigation, . . . any sanction less than dismissal would be inappropriate."). Moreover, Plaintiff appears unable to pay monetary sanctions, so any such sanction is likely to have little deterrent effect. (*See* Dkt. No. 306, indicating that Plaintiff "is subsisting on limited income from loans obtained from friends"); *see also Zulveta v. TC Unlimited, Inc.*, No. 6:15-cv-2880-HMH-KFM, 2017 WL 5642339, at *4–5 (D.S.C. Feb. 9, 2017) (finding sanctions less drastic than dismissal, such as monetary sanctions, would not be appropriate because plaintiff claimed to have no assets and no income), *adopted*, 2017 WL 971535 (D.S.C. Mar. 13, 2017); *Briscoe v. Klaus*, 538 F.3d 252, 263 (3d Cir. 2008) (finding that monetary sanctions were not a viable alternative to dismissal because the plaintiff was proceeding *pro se* and *in forma pauperis*).

CONCLUSION

For the foregoing reasons, the undersigned **RECOMMENDS** that Defendants' Motion for Sanctions (Dkt. No. 292) should be **GRANTED**, and Plaintiff's case should be **DISMISSED IN FULL**. In the event the District Judge disagrees with full dismissal of Plaintiff's claims, the undersigned **ALTERNATIVELY RECOMMENDS** that Plaintiff's causes of action for intentional infliction of emotional distress and emotional damages, compensatory and economic damages, whistleblower retaliation, and invasion of privacy and illegal interception of communications should be **DISMISSED**, and that Plaintiff should be prohibited from using any materials not previously provided to Defendants in support of her claims.

IT IS SO RECOMMENDED.

April 2, 2026
Charleston, South Carolina



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE

Notice of Right to File Objections to Report and Recommendation

The parties are advised that they may file specific written objections to this Report and Recommendation with the District Judge. **Objections must specifically identify the portions of the Report and Recommendation to which objections are made and the basis for such objections.** “[I]n the absence of a timely filed objection, a district court need not conduct a de novo review, but instead must ‘only satisfy itself that there is no clear error on the face of the record in order to accept the recommendation.’” *Diamond v. Colonial Life & Acc. Ins. Co.*, 416 F.3d 310 (4th Cir. 2005) (quoting Fed. R. Civ. P. 72 advisory committee’s note).

Specific written objections must be filed within fourteen (14) days of the date of service of this Report and Recommendation. 28 U.S.C. § 636(b)(1); Fed. R. Civ. P. 72(b); see Fed. R. Civ. P. 6(a), (d). Filing by mail pursuant to Federal Rule of Civil Procedure 5 may be accomplished by mailing objections to:

**Robin L. Blume, Clerk
United States District Court
Post Office Box 835
Charleston, South Carolina 29402**

Failure to timely file specific written objections to this Report and Recommendation will result in waiver of the right to appeal from a judgment of the District Court based upon such Recommendation. 28 U.S.C. § 636(b)(1); *Thomas v. Arn*, 474 U.S. 140 (1985); *Wright v. Collins*, 766 F.2d 841 (4th Cir. 1985); *United States v. Schrönce*, 727 F.2d 91 (4th Cir. 1984).